

Court No. - 37

Case :- WRIT - C No. - 42668 of 2013

Petitioner :- M/S Om Ice Factory

Respondent :- U.P. Power Corporation Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal, Ankit Gaur

Counsel for Respondent :- Chandan Agarwal

Hon'ble Ashok Bhushan, J.

Hon'ble Manoj Kumar Gupta, J.

Heard learned counsel for the petitioner and Sri Chandan Agarwal, learned Counsel for the respondents.

By this writ petition, the petitioner has prayed for quashing the provisional assessment notice dated 19.6.2013.

The petitioner's case in the writ petition is that premises were checked on 4.6.2013 and on the basis of which a provisional assessment notice has been given to the petitioner to submit his reply within 15 days. Learned Counsel for the petitioner challenging the provisional assessment notice, submits that provisional assessment has been made in breach of the provisions of paragraphs 6.8 and 8.1 of the U.P. Electricity Supply Code, 2005. He further submits that the petitioner's electricity connection was disconnected from 12.10.2012 to 15.5.2013 and there was no occasion to include 23 days in the formula for arriving at the assessed amount. He further submits that there is no application of mind by the assessing authority and no opportunity was given before giving provisional assessment notice.

Learned Counsel for the respondents submits that there being opportunity given to the petitioner, it is open for the petitioner to raise all his objections which shall be considered at the time of final assessment. The issues which are sought to be raised in the writ petition, are the issues of fact which can be raised before the authorities at the time of submitting objections. Learned Counsel for the petitioner submits that the petitioner has not yet submitted objections.

In view of the aforesaid, we are of the view that the petitioner may submit objections within 15 days and raise all his objections to the provisional assessment, which may be considered by the respondent No. 3 before finalizing the assessment.

We make it clear that this Court is not expressing any opinion on the merits of the case at this stage and it is for the Assessing Authority to consider all aspects of the matter and take appropriate decision in accordance with law.

With the aforesaid observations, the writ petition is disposed of.

Order Date :- 6.8.2013

LA/-